

Opinion of the Court

Fourth Amendment excessive-force claim and First Amendment retaliation claim.

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The Court of Appeals conceded that Boule’s Fourth Amendment claim presented a new context for *Bivens* purposes, yet it concluded there was no reason to hesitate before recognizing a cause of action against Agent Egbert. See 998 F. 3d, at 387. That conclusion was incorrect for two independent reasons: Congress is better positioned to create remedies in the border-security context, and the Government already has provided alternative remedies that protect plaintiffs like Boule. We address each in turn.

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In *Hernández*, we declined to create a damages remedy for an excessive-force claim against a Border Patrol agent who shot and killed a 15-year-old Mexican national across the border in Mexico. See 589 U. S., at ——. We did not recognize a *Bivens* action there because “regulating the conduct of agents at the border unquestionably has national security implications,” and the “risk of undermining border security provides reason to hesitate before extending *Bivens* into this field.” *Hernández*, 589 U. S., at ——. This reasoning applies here with full force. During the alleged altercation with Boule, Agent Egbert was carrying out Border Patrol’s mandate to “interdic[t] persons attempting to illegally enter or exit the United States or goods being illegally imported into or exported from the United States.” 6 U. S. C. § 211(e)(3)(A). Because “[m]atters intimately related to foreign policy and national security are rarely proper subjects for judicial intervention,” *Haig v. Agee*, 453 U. S. 280, 292 (1981), we reaffirm that a *Bivens* cause of action may not lie where, as here, national security is at issue.

The Court of Appeals thought otherwise. In its view, Boule’s Fourth Amendment claim is “conventional,” 998 F. 3d, at 387; see also *post*, at 511–512, 515 (SOTOMAYOR, J.,